

STATE OF NEW YORK

8375--A

2025-2026 Regular Sessions

IN SENATE

June 6, 2025

Introduced by Sen. HINCHEY -- read twice and ordered printed, and when printed to be committed to the Committee on Rules -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the cannabis law, in relation to establishing the "small cannabis farmer relief act"; and providing for the repeal of such provisions upon expiration thereof

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. This act shall be known and may be cited as the "small
2 cannabis farmer relief act".

3 § 2. The cannabis law is amended by adding a new section 68-c to read
4 as follows:

5 § 68-c. Limited canopy expansion. 1. (a) Notwithstanding any
6 provision of law to the contrary, any licensee who qualifies as a
7 distressed farmer and legally cultivated cannabis during the two thou-
8 sand twenty-two or two thousand twenty-three calendar year shall be
9 eligible to expand their canopy as provided in this subdivision.

10 (b) Licensees shall be eligible to expand their cultivation canopy to
11 up to twice the maximum square footage cultivated in two thousand twen-
12 ty-two or two thousand twenty-three, provided that the expanded area
13 shall not exceed the maximum limits established by the corresponding
14 cultivation tier.

15 (c) Verification of canopy cultivated in two thousand twenty-two or
16 two thousand twenty-three shall be submitted to the office in a form
17 prescribed by the office. Denials of applications under this subdivision
18 may be appealed to the cannabis control board.

19 (d) No additional fees shall be assessed for canopy expansions author-
20 ized pursuant to this subdivision, including standard license renewal
21 fees.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD13242-03-5

1 (e) Microbusiness licensees who previously held an adult-use condi-
2 tional cultivator license shall also be eligible for canopy expansion
3 under this section.

4 2. Notwithstanding the provisions of this section, no licensee shall
5 be authorized to expand their canopy beyond the maximum cultivation
6 canopy size currently permitted under this chapter and any rules or
7 regulations promulgated thereunder.

8 3. Any canopy expansion pursuant to this section shall remain subject
9 to compliance with all applicable environmental, security, and testing
10 regulations.

11 § 3. This act shall take effect immediately and shall expire December
12 31, 2028 when upon such date the provisions of this act shall be deemed
13 repealed.